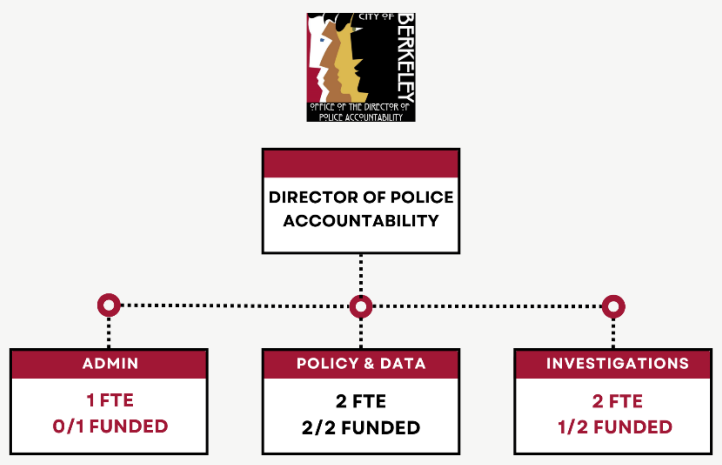
MEMORANDUM

Date:	April 6, 2026
To:	Honorable Members of the Budget and Finance Committee
From:	Katherine Lee, Interim Director of Police Accountability
	Jose Murillo, Policy Analyst
Subject:	FY 2027–2028 Baseline Budget and Reduction Proposals for the Office of the Director of Police Accountability (ODPA)

The purpose of this memorandum is to summarize the ODPA's current staffing structure, outline the baseline budget for Fiscal Years 2027 and 2028, and provide an overview of the proposed budget reductions under consideration.

I. Current Staffing and Office Structure

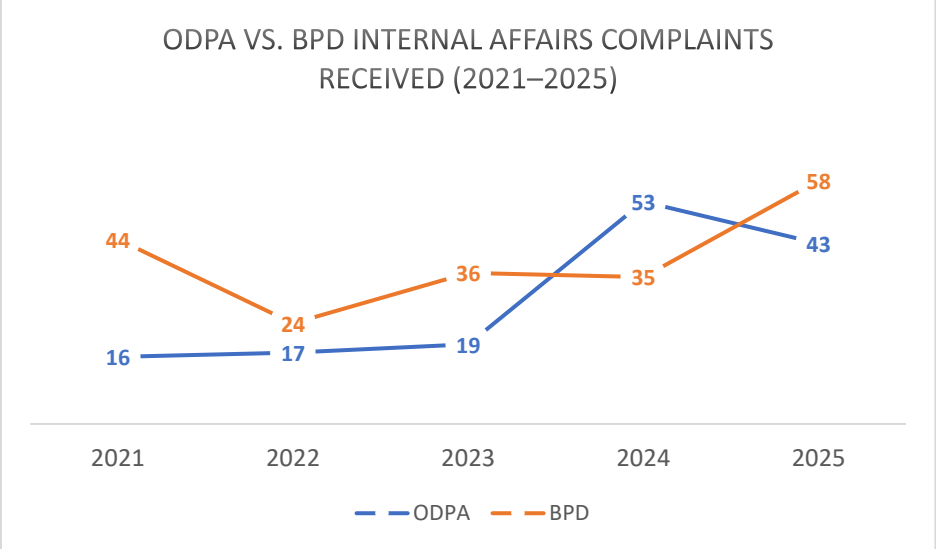
The ODPA was funded for six full-time equivalent (FTE) positions in Fiscal Years 2025 and 2026. The current hiring freeze has affected two of these positions, both of which are integral to the office's operations. At present, the ODPA is staffed by four FTEs: the Director of Police Accountability, two Associate Management Analysts (serving as Policy Analyst and Data Analyst), and one Investigator. The frozen positions include a second Investigator and a third Associate Management Analyst, the latter intended to support the office's administrative functions and previously classified as an Office Specialist III.



In response to these staffing constraints, administrative responsibilities have been reassigned to the Policy Analyst, with support from the Data Analyst. This approach has allowed the office to maintain core operations; however, it has reduced available staff capacity for policy development and research functions in support of the Police Accountability Board (PAB), as staff time is partially redirected to administrative tasks.

With respect to investigations, the sole Investigator is responsible for managing all complaints filed with the ODPA. Between 2021 and 2025, the ODPA investigated an average of approximately 30 complaints annually. Over the same period, the Berkeley Police Department (BPD) Internal Affairs unit investigated an average of approximately 39 complaints annually, with two investigators and dedicated administrative support. The 2024 Citygate report, *Workload Organizational Study of the Police Department*, recommended the addition of one clerical support position to assist the two sergeants assigned to Internal Affairs investigations to maintain a manageable workload.

In 2023, the ODPA requested and received approval for a second Investigator to address comparable workload demands and support operational sustainability. In addition to investigative responsibilities, the position was intended to assist the Policy Analyst with legal research and writing during periods of lower caseload. This position remained filled through April 2025. Since that time, the ODPA has operated with a single Investigator managing complaint intake and investigations, without dedicated clerical support, during a period in which workload has increased over the past five years.



The ODPA's current workload has been sustained across functions through the coordination and prior experience of existing staff; however, this approach may not be sustainable under continued resource constraints. Given the office's staffing level and the concentration of responsibilities within individual roles, changes in staffing may require a temporary reduction or reprioritization of services. The departure of a team member would likely necessitate a transition period before a replacement is able to fully assume

assigned responsibilities, which may affect the office's short-term capacity to support the PAB. As a result, continuity of operations is closely tied to individual staff roles.

Routine staff absences, such as vacation or illness, can have a measurable impact on operations due to limited capacity to redistribute workload. During these periods, staff may need to prioritize time-sensitive functions, which can result in delays in other areas and affect overall service timelines. In response, the ODPA has explored technological solutions, including case management systems, to streamline operations and better utilize existing resources.

II. Baseline Budget for Fiscal Years 2027 and 2028

The table below presents the Office of the Director of Police Accountability's (ODPA) baseline budget allocation by major expenditure category for Fiscal Years 2027 and 2028, prior to any proposed reductions.

Category	FY 2027 Budget	FY 2027 (%)	FY 2028 Budget	FY 2028 (%)
Personnel	$940,290.00	72.89%	$975,596.00	73.37%
Lease	$170,386.32	13.21%	$173,794.08	13.07%
Non-Personnel	$179,276.35	13.90%	$180,255.31	13.56%
Total	**$1,289,952.67**	**100.00%**	**$1,329,645.39**	**100.00%**

In FY 2027, personnel costs account for 72.89% of the $1,289,952.67 total budget, followed by non-personnel expenditures at 13.90% and lease costs at 13.21%. In FY 2028, personnel costs represent 73.37% of the total budget, with non-personnel expenditures at 13.56% and lease costs at 13.07%.

Non-personnel expenditures are primarily comprised of the ODPA's Internal Services Technology Allocation Fund ($43,402.04), PAB member stipends ($30,000), miscellaneous professional services ($30,000), and annual conference expenditures ($26,444.40).

III. Overview of Proposed Budget Reductions and Associated Impacts

This section provides an overview of the proposed budget reductions under consideration and outlines the potential operational impacts associated with those changes. The information below is intended to describe how those adjustments may affect current functions, service levels, and workload distribution.

a. Summary of Proposed Reductions

The ODPA reviewed its budget to identify areas not essential to the office's core duties that could be reduced to achieve cost savings while maintaining overall operations. Through this process, the ODPA identified a maximum reduction of 5.6% ($71,708) to its budget without compromising the funding of services that support core functions or requiring staff layoffs. Given the office's current staffing level and existing workload distribution, further reductions would require the elimination or reduction of staff positions.

As outlined earlier in this memorandum, reductions to staffing levels would affect the office's ability to carry out its core, charter-mandated functions and are therefore not feasible within the current operational structure.

The proposed reductions are organized into four categories, as outlined below, with a corresponding summary of associated operational impacts.

Reductions in Overtime Expenditures – ($10,200)

The ODPA is budgeted for $10,200 in overtime expenditures in both FY 2027 and FY 2028. The proposed reduction would eliminate this allocation and instead utilize compensatory time off in instances where overtime is necessary. As a cost-saving measure, the ODPA has already implemented a practice for non-exempt staff to request compensatory time off in lieu of paid overtime when such work cannot be avoided.

Staff support for PAB meetings is a primary cause of overtime needs; however, staff currently adjust their schedules, where feasible, to minimize overtime. Moving forward, the ODPA will also explore the use of Voluntary Time Off, when operationally feasible, as an additional measure to manage costs throughout the fiscal year.

Reduction to Conference and Travel Expenditures – ($26,444)

The ODPA and PAB members participate annually in the National Association of Civilian Oversight of Law Enforcement (NACOLE) conference. The conference provides access to forums, workshops, and training sessions for oversight practitioners, including community board members, policy analysts, and investigators, with a focus on best practices in civilian oversight and public safety. NACOLE serves as a primary convening in this field and as a key training and professional development opportunity for both staff and Board members.

A reduction of $26,444 would eliminate funding for conference attendance in FY 2027 and FY 2028. As a result, staff and PAB members would not participate in NACOLE during these fiscal years, and access to related training and professional development opportunities typically supported through this allocation would be reduced. This may limit opportunities to incorporate emerging practices and comparative insights into the ODPA's work in Berkeley, which could affect the office's ability to support continuous improvement in oversight processes and inform the PAB's policy and oversight functions.

Reduction to Technology Cost Allocation Fund – ($23,402)

The ODPA's technology cost allocation fund increased due to one-time expenditures related to the transition into its office at 1900 Addison Street, including network infrastructure reconfiguration. The proposed reduction realigns the fund with its pre-transition median level.

Reduction to Office Supply, Postage Expenditures, and Other Miscellaneous Services – ($9,411)

This $9,411 reduction supports the ODPA's ongoing transition toward a paperless environment, where feasible, and increased reliance on existing City resources in lieu of

additional expenditures. The change is intended to optimize current resources and is anticipated to have minimal impact on operations, requiring only minor workflow adjustments.

The proposed reduction includes $3,000 from the Miscellaneous Professional Services account, which is typically reserved to address fluctuations in anticipated service costs (e.g., increases in subscription fees or meeting frequency) or in instances where alternative arrangements may be available. For example, staff may substitute security monitors when appropriate or utilize meeting spaces that do not require such additional services.

Elimination of Parking Allocation – ($3,000)

The ODPA office at 1900 Addison Street includes three on-site parking spaces under the terms of the lease. Use of these spaces provides an alternative to this expense.

b. Lease-Related Constraints on Further Budget Reductions

A key constraint in identifying additional budget reductions needed to meet the 10% and 12.5% targets is the office's current lease obligation for the premises at 1900 Addison Street.[1] The lease represents a significant fixed cost that cannot be reduced or restructured without triggering contractual implications. As a result, it materially limits the office's ability to achieve further cost savings beyond those already identified, leaving an estimated remaining gap of approximately $57,000 to $95,000, depending on the fiscal year and reduction scenario, to meet the 10% to 12.5% targets.

The space was originally acquired with the operational expectation of supporting a fully staffed office of approximately six to seven full-time employees, along with cohorts of interns throughout the year,[2] as well as accommodating regular, in-person meetings of the Police Accountability Board and other commission or community events. Under the current staffing model and operational structure, however, the office is functioning with fewer personnel, and the PAB meetings are the only commission meetings consistently held in this space. As such, the current utilization of the premises does not fully align with the scale of the leased footprint or the associated cost detailed below.

Lease Costs

- FY 2027 Lease Cost: $170,386.32
- FY 2028 Lease Cost: $173,794.08

These costs represent fixed contractual obligations and account for a significant portion of the ODPA's non-personnel budget. Given the structure of the lease, these expenditures are not subject to reduction without renegotiation or termination of the agreement.

[1] Contract 32500083 – Date Executed August 23, 2024 – The Shamszad Family Trust – 1900 Addison Street, 3rd Fl

[2] Since occupying the 1900 Addison Street Office, the ODPA has hosted two interns from UC Berkeley's Public Service Center and four YouthWorks interns.

Janitorial Services

- Annual Cost: $16,307.28/Year

The office incurs ongoing janitorial service costs from Pride Industries[3] to maintain the full leased space, regardless of actual utilization levels. While most adjustments to service frequency may be explored, most of these costs are tied to the size of the premises and are not easily reduced without affecting basic facility maintenance standards.

Security System and Dedicated Network (Wi-Fi)

- Private Wi-Fi/Network Cost: $3,240/Year
- Security System Costs: $3,270/Year

The lease required the installation and maintenance of a dedicated security system. Due to cybersecurity considerations, this system was not integrated into the City's network infrastructure, necessitating a separate private wireless network. This has resulted in additional ongoing service costs that would not otherwise be incurred if integrated into existing City systems.

Operational Implications

Taken together, the lease, associated facility costs, and required infrastructure constitute a substantial fixed cost of approximately $209,510 in FY 2027 and $212,918 in FY 2028, which does not scale with current staffing levels or operational needs. While the space was originally intended to support a larger team and host PAB activities, current usage does not justify the full extent of these expenditures.

Absent structural changes, such as lease renegotiation, subleasing (if permitted), or relocation to a smaller space, these costs will continue to constrain the office's ability to achieve deeper budget reductions. Conversely, depending on the actions taken and their outcomes, adjustments to these lease-related costs could generate sufficient savings to both meet the 10% to 12.5% reduction target and potentially restore funding to other areas that have been reduced. The ODPA will follow Council's direction regarding the desired course of action and defer to the City's Public Works Department, in coordination with the City Attorney's Office, for guidance on appropriate next steps.

End of Memorandum.

[3] Contract 32600004 – Date Executed: 7/24/2025 – Pride Industries, Inc – Citywide Custodial Services